

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at DAFFARS 5302.101? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☒ ≤ \$750K ☐ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: HQ ACC AMIC
300 Exploration Way
Hampton, VA 23666

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable): Authentic8 SILO solution

Program Type (PEO, Enterprise, of Operational): Operational

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ 343,077.00 J&A Type: ☐ Class ☒ Individual

COORDINATION (DAFFARS 5306.304(a))

Date 13 Feb 2025	Contracting Officer Chase Gordon HQ ACC AMIC PKD/ (757) 641-4535	Signature GORDON.CHASE.GREGORY.1551834600 ORY.1551834600	Digitally signed by GORDON.CHASE.GREGORY.1551834600 Date: 2025.02.13 15:13:25 -05'00'
---------------------	--	--	---

Justification and Approval (J&A) for Other Than Full and Open Competition

I. Agency and Contracting Activity.

HQ Air Combat Command (ACC)

Acquisition Management and Integration Center (AMIC) PKD

300 Exploration Way

Hampton, VA 23666

II. Nature and/or description of the action being approved.

Proposed firm fixed price order under the Sole Source Intelligence Community Basic Ordering Agreement (BOA) managed by the Virginia Contracting Activity (VCA) on behalf of the Office of the Director of National Intelligence (ODNI). IAW FAR 16.703 and FAR 6.302-1, this justification and approval is for the procurement of Silo Research Toolbox software which is peculiar to a single manufacturer-- Authentic8, Inc.

III. Description of supplies/services required to meet agency needs.

The Department of Defense (DoD) is the lead agency for detection and monitoring of the aerial and maritime transit of illicit drugs into the United States, and provides support to law enforcement agencies' activities to counter drug trafficking, other forms of transnational organized crime, and terrorism. DoD support helps disrupt and degrade drug trafficking and other illicit threat networks to a level that allows law enforcement agencies, local and regional security forces, or other elements of national power to manage the threat. Under 10 U.S.C. §284, the Secretary of Defense may provide support for the counterdrug activities or activities to counter transnational organized crime of any other department or agency of the Federal Government or of any State, local, tribal, or foreign law enforcement agency for any of the purposes set forth in 10 U.S.C. §284. Specifically, 10 U.S.C. §284(b)(9) provides authority for DoD to provide intelligence analysis services to U.S. law enforcement agencies.

The Counternarcotics (CN) analytic community funded by the Deputy Assistant Secretary of Defense for Counternarcotics and Stabilization Policy (DASD CNSP) is comprised of intelligence and counter threat finance (CTF) analysts from U.S. Central Command, U.S. Northern Command, Joint Task-Force North, U.S. Southern Command, Joint Interagency Task Force South, U.S. European Command, U.S. Africa Command, U.S. Indo-Pacific Command, Joint Interagency Task Force West, U.S. Special Operations Command, the Narcotics and Transnational Crime Support Center, and CN funded organizations within Defense Intelligence Enterprise (further referred to as the CN/CTF Community). The CN/CTF Community provides tailored analysis (e.g., financial, communications, and network analysis) to law enforcement and interagency partners conducting complex, multi-national, multi-faceted operations and investigations to counter transnational crime with a narcotics trafficking or terrorism nexus. A foundational requirement of the CN/CTF Community is the ability to access relevant publicly available information (PAI) while safeguarding analytic personnel and DoD networks from adversary observation, identification, collection and exploitation. This is accomplished through use of a managed attribution (MA) solution.

The CN/CTF Community requires a robust capability to exploit publicly available information to support law enforcement and other interagency partners pursuant to the authority set forth at 10 U.S.C. §284(b)(9). To ensure that the CN/CTF Community can meet its mission to securely conduct PAI research, analysts need to be able to access various web sites, blogs, social media platforms, across the open internet as-well-as on the Dark Web without putting DoD systems at risk of detection from our adversaries or, and from risk of infection from a malicious code. Specifically, the Government requires a Managed Attribution Solution, which allows for the obfuscation of a user's information and where they are browsing from. This is a critical capability for proper PAI research related mission. Finding a browsing solution that provides both Managed Attribution and Secure Remote web browsing is a requirement to successfully support law enforcement mission partners achieve an end state (arrests, seizures, sanctions, etc) that meet national security objectives.

To better support CN/CTF analysts conducting PAI research in support of a law enforcement judicial or regulatory action end state, the CN/CTF Community requires a cloud-based, rapidly scalable virtual browser that also supports managed attribution collection through the use of global egress points and customizable user agent strings for the purpose of

Justification and Approval (J&A) for Other Than Full and Open Competition

obfuscation. The solution should also have robust collection capabilities built within the framework of a cloud-based web browser, including the ability to directly control user access and permissions as well as the ability to encrypt and audit user logs.

Authentic8's Silo Toolbox web browser provides a virtual web browser as a service that isolates all internet web browsing traffic by offloading browser functions to a secure cloud environment and logically sending remote browse and enabling users to reroute their browser traffic to far flung locations, allowing the analyst to obfuscate who they are to adversaries while providing a secure browsing platform.

The CN/CTF Community utilized Silo Toolbox as the primary managed attribution tool. The software was provided through a partnership with the Defense Intelligence Agency.

The Government intends to issue a single Firm Fixed Price (FFP) order with FFP CLINs to Authentic8, Inc. This requirement is for a 12- month period using Operations and Maintenance funding. The support period for this requirement is 4 March 2025 to 4 March 2026. The exact types of licenses are outlined below and are sourced from the BOA price list.

Name	Quantity	BOA Annual Subscription	Total Price
Toolbox	185	\$ 551.25	\$ 101,981.25
Toolbox premium support	185	\$ 82.95	\$ 15,345.75
Service Level 1 CONUS Single Tenant Egress Point	1	\$ 6,750.00	\$ 36,750.00
Service Level 1 OCONUS Single Tenant Egress Point	3	\$ 36,750.00	\$110,250.00
Service Level 2 OCONUS Single Tenant Egress Point	1	\$78,750.00	\$78,750.00
Total Base Requirement			\$ 343,077.00

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

Authentic8, Inc. provides Silo Research Toolbox (Silo), the only Managed Attribution Browser currently available that can provide capabilities and continuity the Government requires. As such, Silo is a unique and highly specialized Cloud Software as a Service (SaaS) provider for secure web browsing at an enterprise scale. The CN/CTF community intends to employ Authentic8, Inc.'s Silo Toolkits on its network. In support of both access and cyber security, the Government requires an enhanced software solution that isolates risky websites and prevents network systems infection with malicious code while improving security controls and providing enhanced logging for user accountability. Silo web browser provides a virtual browser as a service that isolates all internet web browsing traffic by offloading browser functions to a secure cloud environment, and logically sending remote browser session images to be securely displayed through another browser without exposing any cybersecurity risks associated with malicious code. The Silo Toolbox is comprised of several discrete components including the Silo Research Toolbox and Toolbox Support. Additional components are all add-ons to the basic toolbox kit. The tiers 1 and 2 egress points provide DoD authenticated users multiple, world wide, jump off points to protect their security and more importantly identity. All components critical to the successful deployment of the Silo toolbox. Although alternate solutions exist, none provide 100% web code or network isolation; none of the alternate solutions meet all the requirements of the Government to include:

A. Cloud-based, rapidly scalable virtual browser for business browsing and morale browsing, in addition to managed attribution capability through the use of foreign exit, points and customizable user agent strings for the purpose of obfuscation.

B. A secure virtual browser that extends to the Enterprise the ability to directly control all features and functions of the browsers, including the security configurations related to uploading/downloading of files, cut/paste functions into and out of the browser, CAC authentication for DoD users.

C. Complete audit log for all user activity (browsing, upload/download, forms submitted, etc) and allows agencies to encrypt logs with a private key (restricting visibility of log file information to specific government personnel) and API access of log information to other systems such as SIEMs, UBA monitors, etc.

Justification and Approval (J&A) for Other Than Full and Open Competition

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

IAW DFARS PGI 206.302-1(d), the Government issued a Request for Information on 18 December 2024 via SAM.GOV. Based on the responses and review of the responses and capabilities, none were identified that could fill the Government requirement. Authentic8's Silo Toolbox is also the only solution that meets the CN/CTF Community's current requirement while ensuring that the award does not result in substantial duplication of cost to the Government which can not be recovered through competition and unacceptable delays in fulfilling the Government's requirement. The Government intends to issue an order using the Virginia Contracting Activity Community's Managed Attribute Authentic8 Basic Ordering Agreement (HHM402-20-G-0002) Community Managed Attribution. An enterprise-based cost has been negotiated making this a cost-effective solution for the Government. As a result, this procurement will be solicited as a sole source utilizing non-competitive procedures.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

I hereby determine that the anticipated price for this action will be determined fair and reasonable. To make this determination, current price lists, catalogs, comparison with similar items in a related industry and market research will be used. The secure browsing software can be compared to separate commercially available software packages that are similar in nature.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

The Contracting Officer relied on the expertise of Subject Matter Experts within CN/CTF organization to provide feedback and analysis. It was through discussions with the Requirement Owner that AMIC was made aware of an enterprise-wide Basic Ordering Agreement executed by DIA-- HHM402-20-G-0002. Under this BOA, Authentic8, Inc. historically provided the required software applications to the CN/CTF community. Upon review of the requirement and responses from the RFI, the CO has determined that the AbilityOne program would be unable to execute this requirement. There are no known mandatory use policies or mandatory sources that apply to the product or service to be procured.

IAW DFARS PGI 206.302-1(d), the Government issued an RFI on 18 December 2024 via SAM.GOV. The deadline for responses was 8 January 2025. In total, there were 31 respondents.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

Additionally, using an alternative solution would drive additional costs and provide decreased effectiveness because:

1. Custom apps and process flows have already been developed for Silo Toolbox and would delay the operations and incur additional cost to the transition.
2. Migrating from Silo Toolbox would require time and effort to create new accounts further impacting the organization's productivity. In addition, a new vendor would require retraining of more than 150 personnel within the CN/CTF community located at the Commands and DoD Intelligence Community elements. 5-10 hours of training is estimated (avg. 7.5 hours) per analyst (CIV/MIL/CTR) at an average cost of \$65 per hour would increase the cost by \$73,125.
3. Current profiles created under the current vendor would need to be re-created with a new software solution, which could

Justification and Approval (J&A) for Other Than Full and Open Competition

impact the end user's ability to execute the mission. Anticipated time to re-create the profiles would be 10 hours per analyst at an average cost of \$65 per analyst increasing the overall cost an additional \$97,500.

4. Operations Security would be reduced since the users have been known to use less secure, non-enterprise alternatives like traditional web browsers instead of leveraging other anonymous browser solutions which are less user friendly.

5. The time and effort to create private egress nodes would cause significant delays in work performance to include potential work stoppage if analysts do not have those egress nodes available immediately.

6. A new vendor would require new access control processes and security accreditations would have to be implemented, adding time, cost, and complexity to the secure browsing program. The mission impact to the government would be the loss of critical mission capability to access Internet sites that support national security objectives regarding sensitive law enforcement operations.

7. A new vendor could result in incurring costs for hardware and software engineering support that could be significant, albeit a difficult amount to determine precisely, as it would vary significantly based on the time of implementing and approval of a new Authority to Operate (ATO) and similar security architecture.

8. Operations Security would be reduced since the users have been known to use less secure, non-enterprise alternatives like traditional web browsers instead of leveraging other anonymous browser solutions which are less user friendly.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

The Requirement Owner and key stakeholders conducted a detailed capability assessment, reviewing the submissions from all 31 respondents. This consisted of reviewing capability document(s) from 14 small and 17 large businesses. The companies assessed were:

- 1 Accenture Federal Services
- 2 Authentic8
- 3 Babel Street
- 4 Blue Obsidian Solutions Inc
- 5 CDW Government LLC
- 6 Conceal, Inc
- 7 Cyber Intell Solution LLC
- 8 Dark Wolf Solutions, LLC
- 9 ECS Federal, LLC
- 10 Everfox LLC
- 11 Fognigma
- 12 Grey Market Labs, PBC
- 13 Intelligent Waves
- 14 Island Technology, Inc
- 15 Kasm Technologies, Inc
- 16 MAXISIQ, Inc
- 17 Nightwing Technologies, LLC
- 18 Ntrepid, LLC
- 19 Ops Tech Alliance, LLC
- 20 Palo Alto Networks Public Sector, LLC
- 21 Parson Government Services, Inc.
- 22 Patriot Allied Solutions LLC
- 23 RedLattice Incorporated
- 24 Ridgeline International, LLC

Justification and Approval (J&A) for Other Than Full and Open Competition

25 SIXGEN, Inc.
26 Synergy ECP, LLC
27 Tadaweb Technologies USA, Inc
28 ThunderCat
29 TrED
30 TRSS Thomson Reuters Special Services, LLC
31 Zetier, Inc.

Authentic8, Inc Silo Research Tool is currently authorized to operate throughout the various U.S. Government Secure Unclassified Networks. A loss of the Silo will cause Publicly Available Information Program mission failure for all agencies that make up the CN/CTF community. Other research tools could gain authorization for use on the Government's Network. However, each tool requires vetting to ensure all security protocols are met and requires extensive time (several months) for acceptance testing and certifications. Additionally, the current commercially available research and exploitation tools are significantly more expensive than and not as advanced as the Silo Toolbox.

Silo is currently deployed across the Department of Defense and in over 100 federal agencies. After extensive market research of solution offering similar technologies, Silo is the only solution fully compliant with DoD initiatives, meets the President's Cloud Smart Computing Strategy, and has the ability to scale as required to meet the Government's requirements. Authentic8, Inc.'s solution would allow the Government to maintain its capability to encrypt the audit logs preventing even the vendor from seeing the activity of analysts. This is very important to the USG to protect our sources.

Based on the review the team concluded that Authentic8, Inc. remains the only source capable of fulfilling the requirement.

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

CN/CTF community continuously conducts market research and analyzes new equipment as it comes available. As new software becomes available that meets the Government's needs and limitations and the requirement for procurement presents itself, the ability to proceed with competitive acquisitions will be carefully analyzed provided the software is compatible with the CN/CTF community's network systems and mission requirements.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.